



Figure 1. Compilation of the Flag of the European Union, the Flag of the Netherlands, and the Morning Star Flag of West Papua (Britannica, 2023; European Union, 2020; Jouwe, 2006)

**Does the armed conflict in West Papua trigger obligations under EU
Common Position 2008/944/CFSP requiring the Netherlands to restrict
arms exports to Indonesia?**

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Abbreviation	Full Term
AP II	Additional Protocol II (to the Geneva Conventions)
ATT	Arms Trade Treaty
CA	Common Article (of the Geneva Conventions)
CFSP	Common Foreign and Security Policy
EU	European Union
HRW	Human Rights Watch
ICRC	International Committee of the Red Cross
ICTY	International Criminal Tribunal for the former Yugoslavia
IHL	International Humanitarian Law
IPAC	Institute for Policy Analysis of Conflict
NGO	Non-Governmental Organization
NIAC	Non-International Armed Conflict
OPM	Free Papua Movement
TPNPB	West Papua National Liberation Army
ULMWP	United Liberation Movement for West Papua

Abbreviation	Full Term
UN / U.N.	United Nations
UN OHCHR	United Nations Office of the High Commissioner for Human Rights
UNTEA	United Nations Temporary Executive Authority

1. Introduction/Problem Statement

■ 1.1 The conflict in West Papua

The conflict in West Papua represents one of the longest-running separatist conflicts in the Asia-Pacific region. Following the end of Dutch colonial rule in 1962 and a short 7-month period of administration by the United Nations Temporary Executive Authority (UNTEA), authority over the territory was transferred to Indonesia on 1 May 1963 under the 1962 New York Agreement between Indonesia and the Netherlands (Saltford, 2003, p. 21). The agreement included the requirement to organise a referendum on the future status of the territory, later conducted by Indonesia in 1969 under the name “Act of Free Choice”.

The question of the legitimacy of this process remains central to the conflict today. While Indonesia considers its sovereignty over West Papua legally settled, Papuan and international activists argue that the process violated the 1962 New York Agreement and broader international standards of self-determination by failing to provide “a genuinely free choice” (Saltford, 2003, p. 171).

Indeed, the eventual “act of free choice” - described by Suter (2004) as “one of the most shameful events in the U.N.'s history” (p. 214) - was not a true referendum. Instead, a group of 1,026 state-selected representatives were consulted across eight different regional locations over three weeks. Concluding on August 2, 1969, they unanimously declared support for integration with Indonesia (United Nations Secretary-General, 1969, p. 3). Criticised for “conditions of tight political control” (Saltford, 2003, p. 3), intimidation by the Indonesian military and the process ironically referred to as “The Act of No Choice” (Harvey, 2014, p. 173). As a result, many Papuans view the integration process as highly unrepresentative and illegitimate and continue to advocate for independence or greater self-determination.

Over the decades, tensions between Indonesian authorities and Papuan separatist movements have periodically escalated into armed violence. The separatist movement, most notably represented by the Free Papua Movement (OPM) and its armed wing, the West Papua National Liberation Army (TPNPB), has carried out attacks against Indonesian military and police forces, particularly in the Central Highlands region

(Wangge, 2023, pp. 207, 212). In response, Indonesia has maintained a significant military and security presence in the territory, estimated at approximately 45,000 troops as of 2013 (West Papua Media, 2013, para. 3) and has conducted repeated counterinsurgency operations (Wangge, 2023, pp. 207, 213).

The conflict has also been accompanied by longstanding allegations of human rights violations, documented extensively by the United Nations and other international organisations (United Nations Office of the High Commissioner for Human Rights [UN OHCHR], 2022). According to Robinson (2012), “as many as 500,000 Papuans have been killed at the hands of Indonesian security forces” (para. 4), although exact casualty figures remain heavily disputed and difficult to independently verify due to “severely restricted” access to the region (UN OHCHR, 2022, para. 9).

■ **1.2 Introduction of the stakeholder: Netherlands**

This paper approaches the issue from the perspective of the Netherlands as a European Union Member State involved in the implementation of European arms export regulations. The Netherlands represents a particularly relevant stakeholder due to its historical involvement in the region. Being a former colonial power in West Papua, which directly signed and oversaw the transfer of authority to Indonesia, the Netherlands is believed by separatist movements, such as The United Liberation Movement for West Papua (ULMWP), to have “a responsibility to respond to ongoing human rights violations and conflict in Papua” (Island Times, 2026, para. 7).

As a Member State of the European Union, the Netherlands is bound by the obligations contained in Council Common Position 2008/944/CFSP (amended by Council Decision (CFSP) 2025/779 of 14 April 2025), which establishes “common rules governing control of exports of military technology and equipment” (Council of the European Union, 2008, p. 1).

Beyond its national obligations, the Netherlands also plays a role in shaping EU-level export practices through its participation in EU Council decision-making and broader discussions on the Common Foreign and Security Policy. As a result, the Dutch government must align with both national and supranational legal frameworks.

■ **1.3 Area of law and legal issue at stake**

The primary legal issue examined in this paper concerns armed conflict and whether the situation in West Papua triggers obligations under EU Common Position 2008/944/CFSP, requiring the Netherlands to restrict arms exports to Indonesia.

To determine whether these obligations arise, the paper will analyse the conflict's legal classification, intensity, and associated risks under international law. Finally, the paper aims to determine whether the Netherlands must restrict national arms transfers and advocate for stronger EU-level measures.

2. Applicable Law

■ **2.1 Common Position 2008/944/CFSP**

The Netherlands is bound by Council Common Position 2008/944/CFSP, which establishes common rules governing control of exports of military technology and equipment. Article 1 and 1(a) of The Common Position requires Member States to assess all export licence applications against eight specific criteria before being granted authorisation, and to reassess existing authorisations if “new relevant information becomes available” (Council of the European Union, 2008).

One of the relevant criteria is Criterion 2 (a), which discloses that states shall deny an export licence if there is a “clear risk that the military technology being exported might lead to internal repression ... or other serious violations of human rights” (Council of the European Union, 2008). This principle imposes a preventive obligation, requiring not to distribute arms to a state that may use them to otherwise subdue any one person or persons. Furthermore, under Criterion Two (c), states shall not authorise arms exports where a clear risk exists “that military technology or equipment to be exported might be used to commit or facilitate serious violations of international humanitarian law...” (Council of the European Union, 2008). This excerpt explicitly binds domestic export controls to compliance with international humanitarian law (IHL), treating it as a guideline when assessing the suitability of an arms trade deal.

Finally, Criterion Three mandates the Member States to deny an export licence for weapons and technology which would “provoke or prolong armed conflicts ... within the

country of destination” (Council of the European Union, 2008). This excerpt further emphasises that any trade of arms that may be used to further fuel an armed conflict gives grounds for a denial of a licence from the Netherlands.

■ **2.2 Arms Trade Treaty**

The Netherlands is also a State Party to the Arms Trade Treaty, which regulates the international trade in conventional arms (Arms Trade Treaty [ATT], 2026). From this treaty, particular attention should be guided towards Article 6 on Prohibitions and Article 7 on Export and Export Assessment.

Article 6(3) establishes an absolute ban on weapons transfers for a State Party which “has knowledge at the time of authorization that the arms would be used in the commission of genocide, crimes against humanity, grave breaches of the Geneva Conventions of 1949, attacks directed against civilian objects or civilians protected as such, or other war crimes as defined by international agreements to which it is a Party” (ATT, 2013, p. 5). The section sets a strict, knowledge-based legal limit. If the Netherlands possesses reliable information that the receiving state violates the Geneva Conventions, or if it uses these arms to direct attacks at civilians or civilian objects, the transfer is illegal from the beginning.

Where an export is not forbidden by Article 6(3), Article 7(1) on Export and Export Assessment covers a plethora of factors that the State Party must evaluate before considering exporting conventional arms to a given state. It is the responsibility of the Netherlands to assess the potential that the conventional arms or items “would contribute to or undermine peace and security” or could be used to facilitate serious violations of both international humanitarian law and international human rights law (ATT, 2013, p. 5). Furthermore, Section 7 of Article 7 also states that in light of new relevant information, State Parties are encouraged to reassess the authorisation of export with the relevant state (ATT, 2013, p. 6).

■ **2.3 The Geneva Conventions**

The Netherlands is also a ratifier of the four Geneva Conventions and the three Additional Protocols (International Committee of the Red Cross [ICRC], n.d.-b). In the circumstance

of this legal analysis, the Common Article 3 from the conventions and Additional Protocol II are of utmost importance.

Common Article (CA) 3 legally binds all parties in a conflict to ensure that people taking no active part in the conflict are treated humanely, strictly prohibiting fundamental abuses, including violence to life, cruel treatment, torture, and the passing of sentences without a regularly constituted court (ICRC, 1949b). Therefore, the Netherlands must judge non-international conflicts on these standards to see if they are being upheld to allow for arms trade.

Additional Protocol (AP) II further develops and supplements this framework by expanding the operational scope of these protections. Under Article 4 of the AP II, the humane treatment of “all persons who do not take part in hostilities or have ceased to take part” is reinforced by explicit, absolute prohibitions “at any time and in any place whatsoever” against collective punishment, acts of terrorism and violence to the life of a person in any form, including torture (ICRC, 1977, para. 2 (a-h)).

Although Indonesia is not a party to AP II (International Committee of the Red Cross, n.d.-a), the Netherlands is bound by its overarching obligation under CA 1 of the Geneva Conventions to “respect and ensure respect for the present Convention in all circumstances” (ICRC, 1949a, p. 35). As explicitly clarified in the 2016 ICRC Updated Commentary, “an illustration of a negative obligation can be made”, requiring State Parties to refrain from transferring weapons “if there is an expectation” that such military equipment would be used to violate the Conventions (ICRC, 2016, para. 162). This is also in line with Article 6(3) of ATT and its declaration that breaches of the Geneva Conventions are grounds for withholding trade.

Together, CA 3 and AP II establish the IHL framework applicable to non-international armed conflicts. Consequently, when hostilities satisfy the NIAC threshold, the Netherlands is obliged to integrate these humanitarian obligations into its risk assessments under both Common Position 2008/944/CFSP and the Arms Trade Treaty.

3. Legal Arguments and Application

■ 3.1 Classification and Nature of the Conflict in West Papua

For international humanitarian law (IHL) and Criterion Three of the EU Common Position to become relevant, it must first be determined whether the situation in West Papua reaches the threshold of an armed conflict. Under the criteria established in the International Criminal Tribunal for the former Yugoslavia (ICTY) in *Prosecutor v. Tadić* (1995), an armed conflict exists where there is "protracted armed violence between governmental authorities and organised armed groups or between such groups within a State" (para. 70). Later, *Prosecutor v. Boškoski and Tarčulovski* (2008), clarified classifying a non-international armed conflict (NIAC) requires satisfying two criteria:

- (i) "the intensity of the conflict" (para. 175)
- (ii) "the organisation of the parties to the conflict" (para. 175)

These criteria distinguish a NIAC from "banditry, unorganised and short-lived insurrections, or terrorist activities, which are not subject to international humanitarian law" (*Prosecutor v. Tadic*, 1997, para. 562).

The factual situation in West Papua satisfies both elements of this definition. While armed violence between Indonesian security forces and Papuan separatist groups has persisted for decades as a "low-intensity guerrilla war" (Apel, 2025, para. 3), violence has intensified significantly since 2018, spreading from traditional strongholds in the Central Highlands into more than twenty new administrative locations (Ajara et al., 2026, para. 3; Institute for Policy Analysis of Conflict [IPAC], 2022, pp. 8–11). Ongoing clashes between state forces and the West Papua National Liberation Army (TPNPB) have caused continuous deaths and displacement. The scale of military deployment by the Indonesian government, estimated at tens of thousands of personnel (West Papua Media, 2013, para. 3), alongside the regular employment of tactical military assets demonstrate that the state is engaged in military operations rather than standard law enforcement or policing.

The TPNPB also satisfies the organisation criterion. The group operates under an established command structure with regional divisions, utilises military-grade weaponry,

demonstrates logistical planning, and publicly claims responsibility for its operations. Indonesian authorities implicitly acknowledged this organisational capacity by applying a “terrorist label” (IPAC, 2022, p. 21) to the Papuan insurgency, a designation used to justify military responses over ordinary domestic policing.

As a result, despite the Indonesian government’s refusal to classify the situation as an armed conflict (Sudirman, 2025, pp. 194–195), the conflict in West Papua reasonably meets the legal threshold for NIAC, making IHL applicable to all military operations within the conflict-affected regions of West Papua.

■ 3.2 Risk of Internal Repression

Criterion 2(a) of the EU Common Position requires Member States to deny an export licence where there exists a clear risk that exported military equipment might be used for internal repression. Similarly, the ATT Article 7(1) mandates an assessment of whether the arms would be used to commit serious violations of IHL (ATT, 2013).

In West Papua, United Nations experts and NGOs have documented a consistent pattern of arbitrary arrests, torture, extrajudicial killings, enforced disappearances, suppression of political expression, and intimidation by Indonesian security forces (Human Rights Watch [HRW], 2022, para. 2; UN OHCHR, 2022, para. 3). For instance, peaceful demonstrations advocating for Papuan self-determination are regularly dispersed, followed by mass arrests, frequently under *makar* (rebellion) charges (Amnesty International, 2019, paras. 2, 8).

This systemic repression was brought directly to the Dutch state's attention in April 2026, when representatives of the United Liberation Movement for West Papua (ULMWP), testified before the Foreign Affairs Committee of the Dutch Parliament. Supported by Dutch parties and a British representative, the ULMW presented appeals urging the Netherlands to halt military exports, warning that Dutch-supplied weapons are used against Papuan civilians (Island Times, 2026).

Given the prolonged nature of these documented abuses and the Dutch government's official knowledge about these allegations, a clear risk exists that exported military equipment could contribute to internal repression. These circumstances satisfy the restrictive thresholds of both Criterion 2(a) of the EU Common Position and Article 7(1) of

the ATT, legally requiring the Netherlands to deny or suspend relevant arms export authorisations to Indonesia.

■ **3.3 Risk of Violations of International Humanitarian Law**

Under Criterion 2 (c), the EU Member States must refuse arms export licenses when there is a clear risk that exported military goods might be used to commit or facilitate serious violations of IHL (Council of the European Union, 2008). As established in the section 3.1, the situation in West Papua reaches the threshold of an NIAC, making both Indonesian armed forces and the TPNPB bound by Common Article 3 of the Geneva Conventions, obliging them “to uphold the minimum standards of humanitarian protection” (Sudirman, 2025, p. 194), particularly the principles of distinction, proportionality, and the protection of civilians.

Multiple reports concerning Indonesian counterinsurgency operations in the Central Highlands raise severe concerns regarding compliance with these obligations. Security forces have repeatedly utilised indiscriminate aerial warfare, mortars, and drone strikes in populated areas, resulting in the burning down of villages and the killing of civilians who are frequently treated as separatist affiliates solely due to their location (HRW, 2025, paras. 1, 3–5). Indonesia's own National Commission on Human Rights has formally condemned these actions, concluding that “the legal obligation to separate military targets from civilians appears to be frequently compromised” (GHRTV World News, 2026, para. 4).

This compromised environment has triggered a massive humanitarian crisis, internally displacing over 105,000 people by late 2025 due to the ongoing conflict (Human Rights Monitor, 2026, para. 4). State-enforced restrictions on humanitarian access and independent media coverage further increase the risk of unreported IHL violations, leaving these displaced communities to face severe “malnutrition, malaria, and other preventable diseases” (Human Rights Monitor, 2026, paras. 6, 54).

Crucially, Criterion 2(c) does not require absolute certainty that exported equipment will be used in violations of IHL. Rather, it concerns the existence of a “clear risk”(Council of the European Union, 2008). This threshold is mirrored by the Netherlands direct obligations under CA 1 of the Geneva Conventions, legally requiring states to halt weapon

transfers “if there is an expectation, based on facts ... or past patterns,” that the equipment will be used to violate the Conventions (ICRC, 2016, para. 162). Given the documented consistency of these IHL violations and the deliberate lack of transparency, authorising further exports directly breaches this negative obligation. Furthermore, since these actions constitute grave breaches of IHL, continuing shipments with official knowledge of these realities violates the absolute ban under Article 6(3) of the ATT, while failing the preventive risk standards mandated by ATT Article 7(1) (ATT, 2013). Consequently, the situation fully satisfies the threshold of a "clear risk" (Council of the European Union, 2008) of serious IHL violations, triggering the mandatory licensing restrictions of Criterion 2(c).

■ **3.4 Criterion Three: Risk of Prolonging or Aggravating Armed Conflict**

Criterion Three of the EU Common Position requires Member States to deny export licences where military equipment could provoke, prolong, or aggravate armed conflicts within the recipient state (Council of the European Union, 2008). This is reinforced by Article 7(1)(a) of the ATT, which obliges the Netherlands to evaluate whether conventional arms exports would "contribute to or undermine peace and security" (ATT, 2013). Together, these provisions legally restrict transfers that destabilise internal and regional stability.

The conflict in West Papua remains highly resistant to political resolution, involving regular armed confrontations between Indonesian security forces and separatist groups (Pamungkas, 2026, para. 4). In this context, continued Dutch arms transfers risk reinforcing Indonesian reliance on military force rather than political dialogue.

While Indonesia retains the right to respond to armed attacks, the sustained nature of the hostilities, and the absence of structural attempts to reach a political settlement (Saputra, 2026, para. 3) provide reasonable grounds to conclude that further arms exports to Indonesia will prolong and aggravate the existing armed conflict, consequently undermining peace and security, contrary to Article 7(1)(a) of the ATT and engaging the restrictive threshold of Criterion Three.

4. Conclusion

To conclude, the hostilities in West Papua satisfy both the intensity and organisation criteria of the legal test established in *Prosecutor v. Boškoski and Tarčulovski* (2008). Contrary to the Indonesian government's official characterisation, the facts disclosed show that the conflict in West Papua qualifies as a non-international armed conflict (NIAC). Therefore, IHL applies to all parties to the conflict, including a weapons supplier like the Netherlands.

These factual realities trigger the restrictive thresholds of EU Common Position 2008/944/CFSP across three distinct criteria. Criterion 2(a) was applied to the documented pattern of internal repression, including arbitrary detention, extrajudicial killings, and suppression of political expression, brought forward officially to the Dutch government through parliamentary testimony in April 2026 (Island Times, 2026). Criterion 2(c) is satisfied through reports of indiscriminate aerial operations, civilian displacement exceeding 105,000 persons, and the Indonesian National Human Rights Commission's acknowledgement that the principle of distinction is frequently compromised in operations (GHRTV World News, 2026, para. 4). Finally, Criterion 3 is activated by the total absence of a political settlement process, indicating that further arms transfers would prolong and aggravate the conflict rather than contribute to its resolution.

Moreover, regardless of the obligations from the Common Position, the Netherlands overlapping international obligations under the Arms Trade Treaty (ATT) and the Geneva Conventions dictate a similar outcome. Under Article 7 of the ATT, the Netherlands is required to assess whether exported arms could contribute to or undermine peace and security. The documented pattern of Indonesian actions in West Papua directly engages this assessment obligation. Given the direct, official knowledge acquired through the April 2026 parliamentary testimony and UN and NGO documentation, the Netherlands cannot credibly claim ignorance of the risk. The Geneva Conventions further reinforce this position: as a signatory bound by Common Article 3, the Netherlands carries an absolute responsibility to respect and ensure respect for its IHL obligations in all circumstances. This legally bans the state from supplying arms to a party where credible evidence of IHL violations exists.

5. Recommendations and Advice

■ 5.1 Suspension of existing arms export licences to Indonesia pending reassessment.

Under Article 1a of Common Position 2008/944/CFSP, the Netherlands is required to reassess existing licences where new relevant information becomes available (Council of the European Union, 2008). The April 2026 parliamentary testimony by the ULMWP, combined with the Human Rights Monitor's 2025 annual report documenting 105,000 displaced persons and ongoing IHL violations, constitutes precisely such new information. The Dutch government should formally suspend active licences and initiate a comprehensive reassessment against the criteria of the EU Common Position, with particular attention to Criterion 2(a), 2(c), and 3. Furthermore, Article 7 part 7 of the Arms Trade Treaty states that reassessment of authorisation should be done when an exporting state party becomes aware of any new relevant information (ATT, 2013, p. 6).

■ 5.2 Deny new arms export licence applications to Indonesia.

Given the analysis presented in this paper, the Netherlands should treat the current evidentiary basis as sufficient to meet the "clear risk" standard across Criterion 2(a), 2(c), and 3. Until Indonesia demonstrates measurable compliance with IHL obligations in West Papua, including independent verification of civilian protection measures and restoration of humanitarian access, new licence applications should be denied. This recommendation aligns with Article 7 of the ATT (2013, p. 5).

■ 5.3 Advocacy for an EU-wide coordinated position on Indonesia.

The Netherlands should use its membership to formally promote a coordinated position within the EU, to discourage other member states from supplying arms to the conflict in West Papua. The legal basis for this action rests solely on Common Position 2008/944/CFSP, which established common rules for all EU Member States. A fragmented national approach across the EU risks inconsistency in the application of the Common Position. The Dutch government should therefore advocate for a common EU assessment of arms exports to Indonesia, ensuring the obligations arising under the Common Position are applied coherently at the supranational level.

- **5.4 Formal request for humanitarian access and a monitoring mechanism using the UN Human Rights Council.**

If Indonesia formally contests the withdrawal of arms export based on the documented IHL violations in West Papua, the Netherlands should support the establishment of an international monitoring mechanism. This would provide the evidence-based basis for reassessing the “clear risk” standard under both the Common Position and the Arms Trade Treaty. The Netherlands should pursue this through the UN Human Rights Council, building on the foundation established by the UN OHCHR report on Papua (2022). A monitoring mechanism would not only strengthen the Dutch legal position but also embed the assessment made into a multilateral framework, which would reduce the risk of it being characterised as a bilateral political dispute.

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This blog post is hosted by Polis 180, a grassroots, non-partisan German think-tank specializing in European and foreign policy. The platform

operates via independent funding from private membership fees, individual donations, and project grants from public bodies like the German Federal Foreign Office to inform an engaged public audience.

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Informational source on the state parties to the Protocol Additional II.

International Committee of the Red Cross. (n.d.-b). *Treaties and States Parties*.

International Humanitarian Law Databases. Retrieved 4 June 2026, from <https://ihl-databases.icrc.org/en/ihl-treaties/treaties-and-states-parties>

Managed by an independent international humanitarian organization with a unique legal mandate under global treaties, this digital portal serves as a specialized legal ledger. It provides an authoritative database on international humanitarian law.

International Committee of the Red Cross. (1949a, August 12). *Article 1—Respect for the convention*. International Humanitarian Law Databases. <https://ihl->

databases.icrc.org/en/ihl-treaties/gci-1949/article-1

This document contains the original treaty text of the First Geneva Convention, preserved within an international humanitarian legal repository. It fulfils a strictly binding international legal purpose, dictating state and military obligations during conflict.

International Committee of the Red Cross. (1949b, August 12). *Article 3—Conflicts not of an international character*. International Humanitarian Law Databases.

<https://ihl-databases.icrc.org/en/ihl-treaties/gci-1949/article-3>

Written by legal specialists to regulate non-international armed conflicts, this foundational treaty text represents the official codification of Common Article 3. It serves a mandatory international legal purpose for defining baseline humanitarian protections.

International Committee of the Red Cross. (1977, June 8). *Protocol Additional to the Geneva Conventions of 12 August 1949, and relating to the Protection of Victims of Non-International Armed Conflicts (Protocol II)*, 8 June 1977. International Humanitarian Law Databases. <https://ihl-databases.icrc.org/en/ihl-treaties/apii-1977>

This binding international treaty text constitutes the formal legal framework of Protocol II Additional to the Geneva Conventions. Its strict legal purpose is to establish humanitarian protections specifically for victims of internal, non-international armed conflicts.

International Committee of the Red Cross. (2016). *Convention (I) for the amelioration of the condition of the wounded and sick in armed forces in the field. Geneva, 12 august 1949. Commentary of 2016*. International Humanitarian Law Databases.

<https://ihl-databases.icrc.org/en/ihl-treaties/gci-1949/article-1/commentary/2016>

Further commentary on the Geneva Conventions, with application to more modern issues.

Island Times. (2026, April 28). *Stop selling arms to Indonesia, West Papuans urge Netherlands*. <https://islandtimes.org/stop-selling-arms-to-indonesia-west-papuans-urge-netherlands/>

This news report comes from an independent, semi-weekly printed and digital newspaper based in Palau. Maintaining a politically moderate, objective local news alignment, the outlet is completely financed through commercial advertising and regional subscriptions.

Jouwe, N. (2006). *Morning Star flag* [Graphic].

https://commons.wikimedia.org/wiki/File:Morning_Star_flag.svg

Hosted on Wikimedia Commons, this graphic asset is preserved by the Wikimedia Foundation, an educational non-profit NGO. Its primary purpose is to provide open-license visual media and educational imagery for widespread public access

King, P., Elmslie, J., & Webb-Gannon, C. (2011). *Comprehending West Papua*. The University of Sydney.

<https://tapol.org/sites/default/files/ComprehendingWestPapua.pdf>

Published as an academic research monograph by the West Papua Project at the University of Sydney, this study is archived within the university's institutional database. It offers scholars a multidisciplinary, research-driven exploration of regional conflict dynamics

Mulakala, A. (2019). *Conflict prevention and peacebuilding in Asia: Lessons in South-*

South cooperation. The Asia Foundation; Korea Development Institute.

https://asiafoundation.org/wp-content/uploads/2020/06/AADC-2018_Conflict-Prevention-and-Peacebuilding-in-Asia-Lessons-in-South-South-Cooperation.pdf

This specialized report is a joint venture co-produced by the Asia Foundation—a non-partisan international NGO backed by USAID and corporate gifts—and the Korea Development Institute, a state-funded, centrist think tank. It provides conflict-prevention research tailored directly for diplomats and policymakers.

Pamungkas, C. (2026, February 9). Pathways to peace in West Papua: The need for a humanitarian pause and inclusive dialogue. *Peace News*.

<https://peacenews.com/pathways-to-peace-in-west-papua-the-need-for-a-humanitarian-pause-and-inclusive-dialogue/>

This article is published in *Peace News*, an independent, progressive online magazine dedicated to pacifism and nonviolent activism. The publication operates outside corporate channels, relying entirely on reader subscriptions, grassroots donations, and small progressive foundation grants

Prosecutor v. Boskoski and Tarculovski, Case No. IT-04-82-T (International Criminal

Tribunal for the former Yugoslavia, Trial Chamber, July 10, 2008).

<https://www.refworld.org/pdfid/48ac30e22.pdf>

Handed down by international judges within an international judicial body established by the UN, this document is a binding war crimes judgment.

Its strict legal purpose is to establish individual criminal culpability under global jurisprudence.

Prosecutor v. Tadic, Case No. IT-94-1-AR72 (International Criminal Tribunal for the former Yugoslavia, Appeals Chamber, October 2, 1995).

<https://www.icty.org/x/cases/tadic/acdec/en/51002.htm>

This landmark interlocutory appeal decision stems from an international intergovernmental judicial tribunal (the ICTY). Fulfilling a critical legal purpose, it establishes the definitive global jurisprudence used by specialists to classify armed conflicts.

Prosecutor v. Tadic, Case No. IT-94-1-T (International Criminal Tribunal for the former Yugoslavia, Trial Chamber, May 7, 1997).

<https://www.icty.org/x/cases/tadic/tjug/en/tad-ts70507JT2-e.pdf>

This binding legal text is an official criminal trial judgment delivered by judicial experts at the ICTY. It serves a formal legal purpose, anchoring international criminal records regarding violations of humanitarian law

Robinson, J. (2012, March 21). The UN's chequered record. *Al Jazeera*.

<https://www.aljazeera.com/opinions/2012/3/21/the-uns-chequered-record-in-west-papua>

This journalistic op-ed belongs to Al Jazeera, a major international 24-hour news network funded directly by the Qatari government. The outlet maintains a progressive, center-left editorial posture concerning Global South geopolitics for a broad public audience

Saltford, J. (2003). *The United Nations and the Indonesian takeover of West Papua, 1962-1969: The anatomy of betrayal*. Routledge.

<https://doi.org/10.4324/9780203221877>

Published by Routledge, a major international commercial academic publisher, this historical research monograph is widely indexed in global scholarly libraries. It provides researchers with a deeply documented, peer-reviewed historical analysis of mid-century UN diplomatic history in the region

Saputra, E. Y. (2026, May 11). *Indonesian minister: Papua conflict needs national political decision*. Tempo English.

<https://en.tempo.co/read/2102994/indonesian-minister-papua-conflict-needs-national-political-decision>

This piece is an investigative article from *Tempo English*, an independent weekly magazine based in Indonesia. Operating with a center-left, liberal-reformist leaning, the publication is financed through commercial advertising, digital subscriptions, and its parent media corporation

Sudirman, M. U. (2025). The role of international humanitarian law in the conflict with the West Papua Liberation Army. *Jurnal Penelitian Hukum De Jure*, 25, 189–200.
<https://doi.org/10.30641/dejure.2025.V25.189-200>

This peer-reviewed legal study is published in *Jurnal Penelitian Hukum De Jure*, an academic journal managed by Indonesia's National Legal Development Agency (BPHN) database. It offers scholars an analytical evaluation of international humanitarian law applications within regional conflicts

Suter, K. (2004). [Review of the book *The United Nations and the Indonesian takeover of West Papua 1962–1969*, by J. Saltford]. *Australian Journal of International Law*,

11, 214–216.

This peer-reviewed book review is featured in the *Australian Journal of International Law*, an academic journal managed by the International Law Association (Australian Branch). It provides legal scholars with a critical assessment of core historical texts on Papuan sovereignty

The Geneva Conventions of 12 August 1949 (1949).

<https://www.icrc.org/sites/default/files/external/doc/en/assets/files/publications/icrc-002-0173.pdf>

This comprehensive institutional text compiles the four foundational Geneva Conventions into a singular regulatory framework. Its objective is purely legal, dictating binding international humanitarian law constraints on sovereign states during armed conflicts.

United Nations Office of the High Commissioner for Human Rights. (2022, March 1).

Indonesia: UN experts sound alarm on serious Papua abuses, call for urgent aid.

<https://www.ohchr.org/en/press-releases/2022/03/indonesia-un-experts-sound-alarm-serious-papua-abuses-call-urgent-aid>

Issued by a major intergovernmental organization (IGO), this official statement was compiled by expert UN human rights rapporteurs. Its operational purpose is to distribute specialized monitoring alerts and high-level information directly to member states and the public.

United Nations Secretary-General. (1969). *Agreement between the Republic of*

Indonesia and the Kingdom of the Netherlands concerning West New Guinea

(West Irian): Report of the Secretary-General regarding the act of self-

determination in West Irian. <https://digitallibrary.un.org/record/843562>

This official diplomatic report was submitted directly to the United Nations General Assembly, an intergovernmental organization (IGO) body. Prepared for international diplomats, the document serves a legal and historical purpose by compiling specialist findings on self-determination frameworks.

Wangge, H. R. (2023). Securitization of a political conflict in Southeast Asia:

Disengaging the indigenous audience in West Papua. *Asian Security*, 19(3), 207–227. <https://doi.org/10.1080/14799855.2023.2225419>

Published in *Asian Security*, a peer-reviewed international relations journal handled by Routledge, this academic article is distributed across major global databases. It targets security researchers with a specialized analysis of conflict securitization and indigenous audiences.

West Papua Media. (2013, November 5). *Thousands of students rally to reject Otsus Plus and provincial division*.

<https://westpapuamedia.info/2013/11/06/thousands-of-students-rally-to-reject-otsus-plus-and-provincial-division/>

This report stems from an independent, alternative digital news network specializing in regional conflict monitoring. The platform holds a progressive, pro-independence editorial leaning and rejects all state or corporate financing, relying entirely on grassroots reader crowdfunding.

Appendix

AI Declaration

AI tools used: ChatGPT, Gemini, Grok, Claude and Grammarly

Purpose of use:

- Researching general background information on relevant legal, political, and historical topics.
- Brainstorming and refining the research question and legal issue.
- Outlining the structure of the paper, identifying information that should be included each chapter
- Locating relevant academic, legal, and policy sources for further investigation.
- Developing suggestions on improving the clarity, flow, and readability of text
- Receiving a list of suggestions on shortening or restructuring certain sections to meet word limits.
- Critically evaluating draft versions of the paper, using provided description and grading rubric to identify areas requiring further development or clarification.
- Finding word synonyms, paraphrasing the information from the source to avoid excess use of direct citations (while still including the reference)
- Verifying correct APA 7 citation and referencing application
- Correcting grammar, spelling, and language errors.

Examples of prompts used:

1. “Tell me about the West Papua insurgency and how Australian bombs got involved.”
2. “[Early version of the research question]. This is my current research question. It needs adjustment. I need to tailor it specifically to the Netherlands...”
3. “[URL]. What type of source is this according to APA 7? Which category should I choose for it in Zotero?”
4. “[Several sentences from introduction chapter]. In this text, where should I place a direct citation ‘most shameful events in the U.N.'s history’?”

5. “[Conclusion early draft]. I am currently writing a conclusion. From grading rubric: The Conclusion is well supported by arguments in the Application section and clearly explains how those arguments address the Issue(s). Am I going to too much detail?”
6. “[Chapter 1 draft]. I cut something here, as I introduce more details in 3.2. I do want to keep the sources though”.
7. “Is the conflict in West Papua against Indonesian forces legally possible to be classed as an armed conflict?”
8. “How reliable of a tool are you at finding applicable laws for this matter with references”
9. “What about laws that can define it as a NIAC?”

Numerous other prompts were used throughout the research for the purposes mentioned above.

Use of AI-generated output:

No AI-generated text was copied directly into the paper. Although some inspiration was taken from the drafts produced by AI, all text was manually typed.

Any source recommendations provided by AI tools were always directly verified by consulting the link provided. Whenever AI could not produce a valid weblink to a source, separate web search using the source title/author was conducted. The inclusion of specific page/paragraphs numbers was prioritised to always stay specific.

Any information, suggestions, recommendations or proposals provided by AI tools were always assessed and verified, never implementing the suggestion blindly.